

25STCV17725 25STCV17725

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: MOTION FOR RECONSIDERATION OF ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES-GENERAL WITHOUT OBJECTIONS AND AWARD OF SANCTIONS

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C08%2F04%2F2026

Source SHA-256: 81a1f9266318936462bcc50b913cf8411f306893c08988f6a44e125083bd7378

Case Number: 25STCV17725 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

FORREST ALAN FYKES II,

Plaintiff,

vs.

CITY OF INGLEWOOD, and DOES 1
to 100, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25STCV17725

[TENTATIVE] ORDER RE: MOTION

FOR RECONSIDERATION OF ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL RESPONSES
TO FORM INTERROGATORIES-GENERAL WITHOUT OBJECTIONS AND AWARD OF SANCTIONS

Dept. 731

August 4, 2026

8:30 A.M.

Moving Party: Defendant, City of Inglewood

Opposing Party: Plaintiff, Forrest Alan Fykes II

Notice: OK

On May 14, 2026, the Court granted
an opposed, April 1, 2026, motion to compel further responses in relation to Form
Interrogatories—General (“FI-G”), Set One, served by Plaintiff on Defendant

City of Inglewood (the "City"). In relevant part, the Court determined that: "[1] Plaintiff's form interrogatories are accompanied with proof of service indicating Defendant was properly served with this request[;] [(2)] [i]t is undisputed that Defendant received the other discovery requests that were served along with this one, but Defendant simply denies this discovery at issue was served[;] [(3)] [a]s the proof of service indicates the motion was properly served, and Defendant does not challenge the validity of the proof of service, the motion to compel is GRANTED[;] [and] Defendant is ordered to provide responses within 20 days of this order."

Now before the Court is the City's opposed, May 26, 2026, motion for reconsideration of the Court's May 14, 2026, order on the ground that this Court, under the Honorable Med Red Recana, failed to consider evidence showing that the City in fact never received the production requests at issue.

After review, the Court DENIES the City's motion.

First, the Court addresses its authority to consider this motion. "Generally, one trial judge may not review the ruling of another trial judge because the superior court, although comprised of many judges, is a single court. [Citation.] This principle, however, does not apply where the original judge is 'unavailable.' [Citation.]" (Geddes v. Superior Court (2005) 126 Cal.App.5th 417, 426.) Here, the May 14, 2026, order was made by the Honorable Mel Red Recana, a retired judge serving temporarily as a bench officer for the Los Angeles Superior Court, i.e., a judge "unavailable" for the present motion's purposes. Accordingly, this Court under its current judicial officer proceeds with an analysis of the motion for reconsideration.

Moving to the merits, the Court determines that the sole basis for relief in the City's motion is or could have been before Judge Recana on May 14, 2026, for which reason it does not constitute new or different facts, law, or circumstances necessary to support a motion for reconsideration pursuant to Code of Civil Procedure section 1008. Specifically, the City argues that the Court under Judge Recana failed to consider a declaration from and evidence related to a City Attorney (Derald J. Brenneman, Esq.) to the effect that the City never received FI-G, Set One. In other words, the City requests relief based on evidence before the Court on May

14, 2026. This is not a proper basis for relief under section 1008.

The Court briefly notes that the City's briefing otherwise raises arguments related to the City's assertions on the May 14, 2026, that it had promised to provide responses to discovery, and to whether sanctions should have been granted on May 14, 2026. Neither ground shows new or different facts, law, or circumstances before the Court on May 14, 2026, for which reason they are also not proper bases for relief under section 1008.

Last, the Court notes that while a party can suggest to the court that it should reconsider its erroneous order on its own motion so long as the suggestion is not made ex parte (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108; see e.g., *In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 214-15), here, the Court declines to do so. As quoted ante, Judge Recana clearly considered whether service of FI-G, Set One, was properly effected and determined that it was properly served along with a battery of other discovery, and moreover determined that the motion to compel was properly served, supporting the outcome of May 14, 2026, order.

Defendant City of Inglewood is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court